

Orissa Revised Scales of Pay Rules, 2008

Source: <https://indiankanoon.org/doc/61988959/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

[Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions](#)

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[Cites

0

, Cited by

0

]

State of Odisha - Act

Orissa Revised Scales of Pay Rules, 2008

ODISHA

India

Orissa Revised Scales of Pay Rules, 2008

RULE ORISSA-REVISED-SCALES-OF-PAY-RULES-2008 of 2008

Published on 24 December 2008

Commenced on 24 December 2008

[This is the version of this document from 24 December 2008.]

[Note: The original publication document is not available and this content could not be verified.]

Orissa Revised Scales of Pay Rules, 2008

Published vide Notification S.R.O. No. Bhubaneswar, dated the 24th December, 2008

Government of Orissa

Finance Department

S.R.O. No. - In exercise of the powers conferred by the proviso to article 309 of the constitution of India, the Governor of Orissa is pleased to make the following rules, namely :

1.

Short title and commencement.

(1)

These rules may be called the Orissa Revised Scales of Pay Rules, 2008.

(2)

They shall be deemed to have come into force on the 1st day of January, 2006.

2.

Application.

(1)

Save as otherwise provided by or under these rules, these rules shall apply to all persons in whole time employment of Government.

(2)

These rules shall not apply to -

(i)

persons engaged by Government on contract basis except when the contract provides otherwise;

(ii)

persons re-employed in Government service after retirement;

(iii)

persons paid out of contingencies;

(iv)

persons paid otherwise than on a monthly basis including those paid only on piece-rate basis;

(v)

persons not drawing pay in regular scales of pay for whom no revised scales of pay are prescribed;

(vi)

employees borne in the "Work-charged Establishment" as defined in the Resolution of Government in the erstwhile Political and Services Department No.9488 dated the 18th June 1974;

(vii)

employees governed by the Orissa Revised Scales of Pay (for College Teachers) Rules, 1978, the Orissa Revised Scales of Pay (for Medical College Teachers) Rules, 1982, the Orissa Revised Scales of Pay (for College Teachers) Rules, 1989, the Orissa Revised Scales of Pay (for Medical College Teachers) Rules, 1989, the Orissa Revised Scales of Pay (for College Teachers) Rules, 2001, the Orissa Revised Scales of Pay (for Medical College Teachers) Rules, 2001, the Orissa Revised Scales of Pay (for Engineering College Teachers) Rules, 2001, the Orissa Superior Judicial Service Rules, 1963, the Orissa Judicial Service Rules, 1994, the Orissa Superior Judicial Service and Orissa Judicial Service Rules, 2007 read with Finance Department Resolution No.23598/F dated 3.06.2003 revising the scales of pay for the Judicial Officer of the subordinate Judiciary service in the State of Orissa as per the recommendations of Justice Shetty Commission;

(viii)

persons not in whole time employment under Government of Orissa;

(ix)

any other Class or category of persons whom the Governor may by order specifically exclude from the operation of all or any of the provisions contained in these rules.

3.

Definitions.

- In these rules, unless the context otherwise requires,-

(1)

(i)

"existing basic pay" means pay drawn in the prescribed existing scale of pay, including stagnation increment(s), personal pay granted due to fixation of pay under sub-rule (d) of rule 74 of the Orissa Service Code including the cases where reduceable personal pay has been granted to protect the total emoluments on account of loss of special pay, advance increments granted, if any but does not include any other type of pay like "special pay", etc.;

(ii)

"existing scale" in relation to a Government servant means the present scale applicable to the post held by the Government servant (or, as the case may be, any personal scale of pay applicable to him/her) as on the 1st day of January, 2006 in a substantive or temporary capacity:

Provided that in the case of government servant who, on the 1st day of January 2006 was on deputation, leave, foreign service or training or who would have on that date continued in one or more lower posts but for his officiating in a higher

post, "existing scale" means the scale of pay applicable to the post which he would have held but for his being on such deputation, leave, foreign service or training as the case may be, but for his officiating in a higher post;

(2)

(i)

"existing emoluments" means the Sum of (i) existing basic pay, (ii) dearness pay appropriate to the basic pay and (iii) dearness allowance appropriate to the basic pay + dearness pay at Index average 536 (1982 = 100);

(ii)

"present scale" in relation to any post/grade- specified in Column 2 of the First Schedule means the scale of pay specified against that post in column 5 thereof;

(iii)

"pay in the pay band" means pay drawn in the running pay bands specified in column 5 of the First Schedule;

(iv)

"grade pay" is the fixed amount corresponding to the pre-revised pay scales/posts as specified in column 6 of the First Schedule;

(v)

"revised pay structure" in relation to any post specified in column 3 of the First Schedule means the pay band and grade pay specified against that post or the pay scale specified in column 5 and 6 thereof, unless a different revised pay band and grade pay or pay scale is notified separately for that post;

(vi)

"basic pay" in the revised pay structure means the pay drawn in the prescribed pay band plus the applicable grade pay but does not include any other type of pay like special pay, etc.;

(vii)

"revised emoluments" means the pay in the pay band plus grade pay of a Government servant in the revised pay structure;

(viii)

"Schedule" means schedule annexed to these rules;

(3)

"Finance Department" means the Finance Department of the Government;

(4)

"Government" means the Government of Orissa;

(5)

"Pay" means the pay as defined in clause (i) of Sub-rule (a) of Rule 33 of the Orissa Service Code in the existing scale and shall include -

(i)

ad hoc increment granted in the shape of personal pay on account of stagnation at the maximum of the existing scale;

(ii)

Personal pay granted due to fixation of pay under Sub-rule (d) of Rule 74 of the Orissa Service Code, including the case where reduceable personal pay has been granted to protect the total emoluments on account of loss of special pay;

(iii)

advance increment (s) granted, if any;

Note. - A list of existing scale of pay and their corresponding Pay band/revised pay structure is appended to the First Schedule to these rules.

4.

Scale of Pay.

- The revised pay structure with the pay band, pay scale and grade pay as applicable, corresponding to the existing scale of every post/grade specified in Column (2) of the First Schedule shall be as specified against it in Column (5) and (6) thereof.

5.

Drawal of pay in the revised, pay structure.

- Save as otherwise provided in these rules, a Government servant shall draw pay in the corresponding pay in pay band with grade pay in revised pay structure applicable to the post to which he is appointed :

Provided that a Government servant may elect to continue to draw his pay in the existing scale until the date on which he earns his next increment in the existing scale falling due within a period of one year from the date of enforcement of these rules or until he vacates his post or ceases to draw the pay in that scale :

Provided further that in case where a Government servant has been placed in a higher pay scale between 01.01.2006 and the date of notification of these rules on account of promotion and upgradation of pay scale, the Government servant may elect to switch over to the revised pay structure from the date of such promotion and upgradation;

Explanation (1). - The option to retain the existing scale under the provisos to this rule shall be admissible only in respect of one existing scale.

Explanation (2). - The aforesaid option shall not be admissible to any person appointed to a post on or after the 1st day of January 2006, whether for the first time in Government service or by transfer from another post and he shall be allowed pay only in the revised pay structure.

Explanation (3). - Where a Government servant exercises the option under the provisos to this rule to retain the existing scale in respect of a post held by him in an officiating capacity on a regular basis for the purpose of regulation of pay in that scale under any rule or order applicable to that post, his substantive pay shall be substantive pay which he would have drawn had he retained the existing scale in respect of the permanent post on which he holds a lien or would have held a lien had his lien not been suspended or the pay of the officiating post which has acquired the character of substantive pay in accordance with any order for the time being in force, whichever is higher.

6.

Exercise of option.

(1)

The option under the provisos to Rule 5 shall be exercised in writing in the Form as in the Second Schedule so as to reach the authority mentioned in Sub-rule (2) within three months of the date of publication of these rules or where an existing scale has been revised by any order made subsequent to that date, within 3 months of the date of such order :

Provided that -

(i)

In case of a Government servant who is on the date of such publication or, as the case may be, date of such order, on leave or deputation or foreign service or active service, the said option shall be exercised in writing so as to reach the said authority within three months of the date of his taking charge of his post and or within three months from the date of publication of this Rule to the Administrative Department or Heads of Department or Head of Office;

(ii)

Where a Government servant is under suspension on the 1st day of January 2006, the option may be exercised within three months of the date of his return to his duty if that date is later than the date prescribed in this sub-rule;

(2)

The option shall be intimated by the Government servant to his Head of Office.

(3)

If the intimation regarding option is not received within the time mentioned in Sub-rule (1), the Government servant shall be deemed to have elected to be governed by the revised pay structure with effect on and from the 1st day of January, 2006.

(4)

The option once exercised shall be final.

Note-1. - Persons whose services were terminated on or after the 1st January, 2006 and who could not exercise the option within the prescribed time limit, on account of discharge on the expiry of the sanctioned posts, resignation, dismissal or removal on disciplinary grounds are entitled to the benefits of this rule.

Note-2. - Persons who have died on or after the 1st day of January, 2006 and could not exercise the option Within the prescribed time limit are deemed to have opted for the revised pay structure on and from the 1st day of January, 2006.

Note-3. - Persons who were on earned leave or any other leave on 1.1.2006 which entitled them to leave salary will be allowed the benefits of this rule.

7.

Fixation of initial pay in the revised pay structure.

- The initial pay of a Government servant who elects, or is deemed to have elected under Sub-rule (3) of Rule 6 to be governed by the revised pay structure on and from the 1st day of January, 2006 shall, unless in any case the Governor

by special order otherwise directs, be fixed separately in respect of his substantive pay in the permanent post on which he holds a lien or would have held a lien if it had not been suspended, and in respect of his pay in the officiating post held by him in the following manner, namely :

In the case of all employees -

(i)

the pay in the pay band/pay scale will be determined by multiplying the existing basic pay as on 01.01.2006 by a factor of 1.86 and rounding off the resultant figure to the next multiple of 10;

(ii)

If the minimum of the revised pay band/pay scale is more than the amount arrived as per (i) above, the pay shall be fixed at the minimum of the revised pay band/pay scale;

(iii)

The pay in the pay band will be determined in the above manner. In addition to the pay in the pay band, grade pay corresponding to the existing scale will be payable.

Note-1. - Where the existing emoluments exceed the revised emoluments in the cases of any Government servant, the difference shall be allowed as personal pay to be absorbed in future increases in pay.

Note-2. - Where in the fixation of pay under Sub-rule (1) the pay of a Government servant who in the existing scale was drawing immediately before 1st day of January, 2006 more pay than another Government servant junior to him in the same grade in the cadre he belongs gets fixed in the revised pay band at a stage lower than that of such junior, his pay shall be stepped up to the same stage in the revised pay band as that of the junior.

Note-3. - Where a Government servant is in receipt of personal pay on the 1st day of January, 2006, which together with his existing emoluments exceeds the revised emoluments, then, the difference representing such excess shall be allowed to such Government servant as personal pay to be absorbed in future increases in pay.

Note-4. - In case where a senior Government servant promoted to higher post before the 1st day of January, 2006 draws less pay in the revised pay structure than his junior who is promoted to the higher post on or after the 1st day of January, 2006, the pay in the Pay band of the senior Government servant should be stepped up to an amount equal to the pay in the pay band as fixed for his junior in that higher post. This stepping up should be done with effect from the date of promotion of the junior Government servant subject to the fulfillment of the following conditions, namely :

(i)

Both the junior and senior Government servant should belong to the same cadre and the post in which they have been promoted should be identical in the same cadre.

(ii)

Pre-revised scale of pay and revised grade pay of the lower and higher post in which they are entitled to draw pay should be identical.

(iii)

The senior Government servant at the time of promotion should have been drawing equal pay or more pay than the junior.

(iv)

if in the lower post the junior officer was drawing more pay in the pre-revised scale than the senior by virtue of an advance increment granted to him, provision of this note need not be in vogue to step up the pay of the senior officer.

Note-5. - Fixation of pay in the revised scale shall be made in the form appended to these rules as Third Schedule.

8.

Fixation of pay in the revised pay structure of an employee appointed as fresh recruits on or after 01.01.2006.

- Column (5) and (6) of the First Schedule of these rules indicate the entry level pay in the pay band under which the pay of direct recruits to a particular post carrying specific grade pay will be fixed on or after 01.01.2006. This will also be applicable in case of those recruited between 01.01.2006 and the date of issue of this notification. In such cases where the emoluments of the pre-revised pay scale i.e. basic pay in the pre-revised pay scale plus Dearness Pay plus Dearness Allowance applicable on the date of joining exceeds the sum of the pay fixed in the revised pay structure and applicable dearness allowance thereon, the difference shall be allowed as personal pay to be absorbed in future increments in pay.

9.

Rate of increment in the revised pay structure.

- The rate of increment in the revised pay structure shall be 3% of the sum of the pay in the pay band and grade pay applicable, which will be rounded off to the next multiple of 10. The amount of increment will be added to the existing pay in the pay, band.

10.

Date of next increment in the revised pay structure.

- The date of next increment shall be twelve months from the last increment sanctioned. In case where the pay is fixed at the minimum of revised scale of pay; the date of next increment shall be the anniversary of date of coming over to the revised scale of pay.

11.

Fixation of pay in the revised pay structure subsequent to the 1st day of January, 2006.

- Where a Government servant continues to draw his basic pay in the existing scale and is brought over to revised pay structure from the date later than the 1st day of January, 2006, his pay from the later date in the revised pay structure subject to the provisions of Rule 5, shall be fixed in the manner as indicated in Rule 7 taking the pre-revised basic pay as on that date.

12.

Fixation of pay on re-appointment after 1st day of January 2006 to a post held prior to that date.

- A Government servant who had officiated in the post prior to the 1st day of January, 2006, but was not holding that post on that date and who on subsequent appointment to that post draws pay in the revised pay structure shall be allowed the benefit to the extent it would have been admissible had he been holding that post on the 1st day of January, 2006, and had elected the revised pay structure on and from that date.

13.

Fixation of pay on promotion on or after 01.01.2006.

- In case of promotion from one grade pay to another in revised pay structure the fixation will be done as follows :

(1)

One increment equal to 3% of the sum of the pay in the pay band and the existing grade pay shall be computed and rounded off to the next multiple of 10. This will be added to the existing pay in the pay band. The grade pay corresponding to the promotional post will thereafter be granted in addition to the pay in the pay band. In case where the promotion involves change in the pay band also the same methodology would be followed. However if the pay in the pay band after adding the increment is less than the minimum of the basic pay band, to which promotion is taking place, the pay in the pay band shall be stepped up to such minimum.

(2)

If the Government servant exercises option to fix his promotional pay not from the date of joining in the promotional post but from the later date with accrual of one increment in the lower scale and to refix his promotional pay in the appropriate higher scale, in such eventuality a Government servant in case of the later case will continue in the lower pay band with grade pay in the promotional post till the re-fixation of his promotional pay in the promotional pay band. Such option shall have to be exercised within a month from the date of joining in the promotional post in the prescribed format in the Fourth Schedule. Further in case of persons who have already been promoted and their pay is to be refixed in the promotional pay band retrospectively, they may exercise option to avail promotional benefit in the pay within one month as per the prescribed format in the Fourth Schedule from the date of publication of revised pay rules. Otherwise they will be deemed to have come over to the promotional scale in the revised scale of pay from the date of joining in the promotional post.

14.

Assured Career Progression (ACP).

- All state Government employees up to Group A category can avail ACP in 3 stages i.e. first ACP on completion of 15 years, second after 25 years and third after 30 years of service in their original post or grade and such benefit of ACP will be given only after screening each and every case by a Screening Committee to be constituted by the Department. All the norms for promotion shall also be applicable for allowing ACP at different stages. The financial benefit to the extent of one increment for a sum of 3% on basic pay and grade pay will be added on availing different stages of ACP and next increment will accrue one year after.

15.

Stagnation increment.

- After refixation of the pay in the pay band and revised pay scale the State Government employees may avail stagnation increment @ of 3% in the revised pay scale at an interval of 2 years after reaching the maximum of the pay band. Three such increments shall be allowed to be treated as personal pay. Employees against whom disciplinary cases are pending will, have to await the result of the disciplinary case for being considered for grant of this benefit.

16.

Authority competent to fix the pay.

- The pay of a Government servant in pay band and revised scale shall be fixed by such authority and would be checked by such officer as may be specified in the instructions to be issued by the Finance Department, Government of Orissa.

17.

Excess payment to be recovered.

- Where in the course of fixation of pay under these rules, any amount drawn or received as pay by any Government servant under any rule is found to be in excess of the amount payable to him under these rules, the excess amount so drawn or received shall be recoverable from such Government servant or from his recoverable pensionary benefits for which he shall submit an undertaking as specified in the Fifth Schedule.

18.

Overriding effect of these rules.

- The provisions of the Orissa Service Code, the Orissa Revised Scales of Pay (for Non-Gazetted Officers) Rules, 1974, the Orissa Revised Scales of pay (for Gazetted Officers) Rules, 1974, the Orissa Revised Scales of pay Rules, 1981, the Orissa Revised Scales of Pay Rules, 1985, the Orissa Revised Scales of Pay Rules, 1989 and the Orissa Revised Scales of Pay Rules, 1998, shall not, save as otherwise provided in these rules, apply to cases where pay is regulated under these rules, to the extent they are inconsistent with these rules.

19.

Power to relax.

- Where the Finance Department is satisfied that the operation of all or any of the provisions of these rules cause/causes undue hardship in any particular case, they may, in the public interest, by order, dispense with or relax the requirements of all or any such provisions to such extent and subject to such conditions as may be deemed necessary for dealing with the case in a just and equitable manner.

20.

Interpretation.

- If any question arises relating to the interpretation of any of the provisions of these rules, for removal of anomalies, omissions, difficulties, printing and clerical errors, all such matters shall be referred to the Government for clarification and decision.

First Schedule

[See Rule 3]

Existing Scale of Pay under ORSP Rules, 1998 and Corresponding Revised Scale of Pay, 2008 in Pay Band with Grade Pay

(In Rs.)

Sl. No.

Existing scale of pay under ORSP Rules, 1998

Post/ Grade

Name of Pay Band / Scale

Revised Scale of Pay

Grade pay

(1)

(2)

(3)

(4)

(5)

(6)

1

2550-55-2660-60-3200

S-1
-1S
4440-7440
1300
2
2610-60-3150-65-3540
S-2
-1S
4440-7440
1400
3
2650-65-3300-70-4000
S-3
-1S
4440-7440
1650
4
2750-70-3800-75-4400
S-4
PB-1
5200-20200
1800
5
3050-75-3950-80-4590
S-5
PB-1
5200-20200
1900
6
3200-85-4900
S-6
PB-1
5200-20200
2000
7
3600-100-5600
S-6A
PB-1
5200-20200
2200
8
4000-100-6000
S-7
PB-1
5200-20200
2400
9
4500-125-7000
S-8
PB-1
5200-20200

2800
10
4750-125-7500
S-8A
PB-2
9300-34800
4200
11
5000-150-8000
S-9
PB-2
9300-34800
4200
12
5300-150-8300
S-9A
PB-2
9300-34800
4200
13
5500-175-9000
S-10
PB-2
9300-34800
4200
14
5900-200-9700
S-10A
PB-2
9300-34800
4200
15
5700-200-9900
S-10B
PB-2
9300-34800
4200
16
6500-200-9900
S-11
PB-2
9300-34800
4200
17
6500-200-10500
S-12
PB-2
9300-34800
4600
18
7300-200-10500

S-13
PB-2
9300-34800
4600
19
7300-200-10900
S-14
PB-2
9300-34800
4600
20
8000-275-13500
S-15
PB-2
9300-34800
5400
21
8000-275-13500 Group-A Entry
S-15A
PB-3
15600-39100
5400
22
9350-325-14550
S-16
PB-3
15600-39100
6600
23
10000-325-15200
S-17
PB-3
15600-39100
6600
24
10650-325-15850
S-17A
PB-3
15600-39100
6600
25
12000-375-16500
S-18
PB-3
15600-39100
7600
26
14300-400-18300
S-19
PB-4
37400-67000

8700

27

15100-400-19500

S-20

PB-4

37400-67000

8800

28

16400-450-20450

S-21

PB-4

37400-67000

9000

Second Schedule

Application Form for exercising option to come over to the Orissa Revised Scales of Pay Rules, 2008

[See Rule 6(1)]

1. (i) I.....holding the post of.....in the scale of.....do hereby elect the revised pay structure with effect from the 1st day of January, 2006.

Or

(ii)

I.....hereby elect to continue on the existing scale of pay of my substantive/officiating post.....until, date.....(i.e. the date of my next increment).

2. The option hereby exercised is final and will not be modified at any subsequent date,

Date.....

Signature.....

Designation.....

Office.....

Signed before me.....

Head of Office/Any other Gazetted Officer with designation received the above declaration.

Signature.....

Head of Office/Competent Authority

(with seal)

Date.....

N.B. : Delete which is not applicable at Para-1.

Third Schedule

Form for Fixation of Pay under the Orissa Revised Scales of Pay Rules, 2008

[See Rule 7]

1. Name of the Employee :

2. Designation of the post in which pay is to be fixed as on January 1, 2006.

3. Status (Substantive/Officiating) :

4. Name of the Head of the Office :

(Designation only)

5. Existing Scale of Pay :

6. Revised pay band & grade pay in the pay structure as per the Fitment Table attached at Annexure-I.

7. Date from which option exercised to come over to the Revised Scale:

8. Emoluments in the existing Scale of pay on the Date from which Revised Scale is opted :

(a)

Basic Pay (including R.P.P.) :

(b)

D.P. if any :

(c)

D.A. as on 01.01.2006 :

(d)

Total emoluments (a to c) :

9. Pay fixed in the Revised Scale of pay:

(a)

Pay in the revised pay band/scale in which pay is to be fixed as per the fitment Table attached at Annexure-I

(b)

Grade pay to be applied corresponding to the pay band as per Annexure-I

10. Stepped up pay with reference to the Revised pay of junior, if applicable [Notes 2 & 4 of Rule 7(1) of ORSP Rules, 2008]. Name and pay of the Junior also to be indicated distinctly :

11. Revised pay with reference to the Substantive Pay in cases where the pay fixed in the officiating post is lower than the pay fixed in the substantive post if applicable [Sub Rule (1) of Rule 7] :

12. Personal Pay, if any [Notes 1 and 3 of Sub Rule (1) of Rule 7] :

13. Revised emoluments after fixation :

(a)

Pay in the Revised Pay Band/Pay Scale :

(b)

Grade Pay

(c)

Personal Pay, if admissible:

14. Date of next increment (Rule 10) and pay after grant of increment.

Date of Increment :

Pay after Increment

{

Pay in the Pay Band/Scale

Grade Pay (wherever applicable)

}

15. Any other relevant information :

Date :

Office :

Signature & Designation of

Head of Office/Competent Authority

Fourth Schedule

Form for Exercising Option on The Event of Fixation of Pay on Promotion to Next Higher Grade/Post

[See Rule 13]

I.....holding the post of.....in the pay scale of Rs.....and drawing pay of Rs.....do hereby elect to get my pay fixed in pay band.....with grade pay.....under the ORSP Rules, 2008 on.....i.e. the date of my joining in the promotional post/the date of accrual of my next increment.

2. The option hereby exercised is final and will not be modified at any subsequent date.

Signature

Designation.....

Office.....

Signed before me.....

Head of Office/Any Gazetted Officer.....

Fifth Schedule

Undertaking

[See Rule 17]

I hereby undertake that any excess payment that may be found to have been made as a result of incorrect fixation of pay or any excess payment detected in the light of discrepancies noticed subsequently will be refunded by me to the Government either by adjustment against future payments due to me or otherwise.

Signature of the employee.....

Name.....

Designation.....

Date :

Place :

Government of Orissa

Finance Department

O.M. No. 55376/F, Dated 26.12.2008

CS-IV-2/2008

Sub:- Revision in the rate of House Rent Allowance.

Government of India effected revision of Scale of all Central Government employees with effect from 01.01.2006 and on such revised Scale of Pay and Grade Pay, they have allowed House Rent Allowance w.e.f. 01.09.2008 in the revised scale after reclassifying Cities/Towns/other places in 'X', 'Y' & 'Z' category. Having regard to the above decision of Government of India, State Government have decided to allow House Rent Allowance to Government employees on the revised Scale of Pay & Grade Pay w.e.f. 01.12.2008 in the following rate and manner.

Sl. No.

Name of the Cities/Towns

Rate of H.R.A. Admissible

1.

BBSR & Cuttack (Urban Area)

20% of Basic Pay and Grade Pay

2.

Rourkela, Berhampur, Sambalpur, Puri, Baragarh ,
Brajarajnagar, Bhadrak, Balasore Bolangir, Bhawanipatna, Barbil,
Baripada, Dhenkanal, Jeypore, Jharsuguda, Jatni, Keonjhar,
Paradeep, Rayagada Sunabeda (Urban Area).

10% of Basic Pay and Grade Pay

3.

In other areas

5% of Basic Pay and Grade Pay

2. The term of "Basic Pay" in the revised pay structure means the pay drawn in the prescribed pay band plus the applicable grade pay, but does not include any other type of pay like special pay etc.

3. The Government have further decided that HRA would be admissible to the employees of the State Government at the above rates subject to the following stipulations.

(a)

The rate at which House Rent Allowance would be admissible shall be determined according to the places in which the Government employee is residing and if the residence of the employee is located within 8 Kms from the Headquarters. The rate as applicable to the place in which the headquarters is located, shall be taken into account. A Government employee staying in a hired accommodation/ living in his own house within 8 Kms of his headquarters shall be eligible to H.R.A. as admissible under this order. A Government employee staying in a rented accommodation/living in his own house at a place beyond 8 Kms of his Headquarters shall not be eligible for H.R.A.

(b)

A Government employee who is living in a house which belongs to him/her father or mother or owned by his wife or children or who is staying in a hired accommodation will be eligible to get house rent allowance as admissible to him/her. However, a Government servant sharing Government accommodation allotted by Government to another Government servant shall not be eligible for H.R.A.

(c)

If both the husband and wife are Government servants and are posted at the same Headquarters, H.R.A. will be payable to one of them. Similarly, H.R.A. will not be admissible to a State Government employee whose husband/wife is in receipt of H.R.A. or provided with accommodation by the Central Government or Reserve Bank of India, Nationalized Banks or Regional Rural Banks, Co-operative Organizations of State Government, autonomous body, local body, undertakings, companies etc. Owned, controlled or aided by Central/State Government and such Government

employees shall furnish a certificate in the prescribed form.

(d)

House Rent Allowance shall be admissible to a Government employee who refuses Government accommodation when offered or surrenders the same after occupying to move to his own house or hired accommodation. This will not be applicable to earmarked Government quarters. However, Government employees debarred from allotment of Government accommodation due to unauthorized subletting or for breach of allotment rules will not be eligible for H.R.A.

(e)

Grant of House Rent Allowance during leave and transfer will be regulated by the relevant provision of Rule 101 of Orissa Service Code. The allowance will be admissible during absence from headquarters on tour.

(f)

A Government employee shall continue to draw house rent allowance during joining time at the same rates at which he was drawing the allowance at the station from where he was transferred.

Where, however, joining time is affixed to leave, payment of house rent allowance shall be regulated by the provision of Rule 101 of Orissa Service Code.

(g)

A Government employee who on transfer, has been permitted to retain Government accommodation at the old station on payment of normal rent or penal rent, will be eligible for House Rent Allowance at the new station, provided he is other-wise eligible for House Rent Allowance at the new station.

(h)

House Rent Allowance shall be admissible to a Government employees deputed on training provided the period of training is treated as duty and he has retained his family at the old station where Government accommodation has not been provided.

(i)

House Rent Allowance will also be admissible to the employee during the period of suspension if at the place of his Headquarters s fixed by the competent authority, Government accommodation has not been provided.

(j)

In the case of re-employed Government employees whose pay plus pension exceeds the sanctioned maximum pay of the post, the House Rent Allowance will be calculated on that maximum.

(k)

This concession shall apply mutatis mutandis to the Government employees borne in work-charged establishment but shall not apply to staff paid out of contingencies and labourers employed on Casual and Nominal Muster Rolls,

(l)

The Government employees shall furnish a certificate in the form prescribed in FD Memo No.46151 (265)/F., dated 29.09.2005 along-with his first claim for House Rent Allowance and also in July of each year.

(m)

The grant of House Rent Allowance to the employees shall be made by the Head of Office on receipt of the certificate from him in the prescribed form.

Government of Orissa

Finance Department

Memo No. PCC-51/2008/55371/F., dated 26.12.2008

To

All Departments of Government/

All Heads of Departments/

All Collectors.

Sub : Procedure for fixation and drawal of pay in the revised scales under the Orissa Revised Scales of Pay Rules, 2008.

In pursuance of Government in F.D. Resolution No.54080/F., dated 16.12.2008 the pay scales of various posts/services under the State Government have been revised with effect from the 1st January, 2006. The Orissa Revised Scales of Pay Rules, 2008 incorporating the details of the revised scales and procedure of pay fixation have been issued vide Notification No.55244/ F., dated 24.12.2008. Subject to the provisions of these Rules, the following instructions shall be scrupulously observed in matters of fixation and drawal of pay, maintenance of service books, etc.

(I)

The option to come over to the revised scale or to retain the existing scale shall be exercised by the employee and furnish the same to the Head of Office as required under Rule-6(1) of the Orissa Revised Scales of Pay Rules, 2008.

(II)

The prescribed authority to whom option is intimated shall be competent to accept it. The option statement should be signed in each case as token of acceptance. A copy of the option should be retained by the accepting authority for record in his office and the other copy shall be made over to the Drawing and Disbursing Officer for attaching the same to the first pay bill in which the salary of the employee is drawn in the revised scale. Entries regarding exercise of option and fixation of pay should be made in the original and duplicate copies of service books of the employee in the following form :

"Certified that as required under the Orissa Revised Scales of Pay

Rules, 2008, option to come over to the revised scale with effect from...../to retain the existing scale upto.....has been exercised by the employee and the option has been accepted. Pay in the revised scale has been fixed under Rule-7 of the said Rules as per the Third Schedule".

(III)

In respect of employees who elect to come over to the revised scales, the DDO concerned shall fix the revised scale of pay under ORSP Rules, 2008 in the manner illustrated at Annexure-1 (Seven Nos.). The revised scale of pay shall be drawn in the monthly salary of December, 2008 to be drawn in January, 2009.

(IV)

After revision of pay, the total differential arrear shall be calculated and 40% of the same is to be drawn in cash and disbursed on or before 31.03.2009 without checking by the designated authority. The pay fixation statement shall be checked after drawal of 40% arrear and if any excess drawal is made due to wrong fixation the same shall be adjusted towards subsequent drawal of arrear or any other dues.

(V)

The DDO and the Head of the Office shall be held equally responsible for wrong fixation and excess drawal if any for which both of them shall be liable for penal action for such omissions and commissions in this regard.

(VI)

The balance 60% of the differential arrear shall be drawn in financial year 2009-10 after post checking of 40% arrear already drawn & paid and pre-checking for the balance 60% arrear by the checking authority as indicated in this circular. However, clearance from Finance Department shall be given separately for payment of 60% arrear in the next financial year 2009-10 after which the arrear can be drawn.

(VII)

The mode of payment for balance 60% arrear will be communicated by the Government in due course.

(VIII)

The revised pay fixation statements (in triplicate) shall be prepared by the Heads of Offices concerned in accordance with the provisions of Rule-7 of the Orissa Revised Scales of Pay Rules, 2008 in the form specified in the Third Schedule of ORSP Rules 2008.

(IX)

The statement of pay fixation shall be checked by the designated authorities as indicated below before drawal of the balance 60% of the arrear during 2009-10. In the Secretariat FA/AFA or in their absence an Officer other than the Officer who has prepared the statements may be nominated by the Secretary of the concerned Department to check the pay fixation statement.

Department/Office for scrutiny of pay fixation
statement

Checking Authority

Secretariat Establishment/ Attached Offices/ Offices of Heads
of Departments.

Secretariat Departments (FA/AFA and in their absence an
Officer other than the Officer who has prepared the statements
may be nominated by the Secretary of the concerned Department)

Attached Offices/District Level Offices/ Range Offices

Heads of Department

Office subordinate to Dist. Level offices

District Level Offices

Revenue and Block Offices in the Sub-Division

Sub-Divisional Offices (Revenue Department)

(X)

In respect of employees who have joined posts for which revised pay scales have been prescribed, after the commencement but before the publication of the Rules, their pay shall be fixed in the manner prescribed under Rule-8 of ORSP Rules-2Q08.

(XI)

The pay fixation statement (in triplicate) shall be sent to the checking authority alongwith service books of the employees. The checking authorities should complete the scrutiny within a week of the receipt of the documents and return two copies of the statement, duly certified as checked/corrected alongwith service book to the Heads of Offices concerned.

Where the checking authority finds it difficult to scrutinize the pay fixation statements of sub-ordinate offices due to large number of employees involved, he/she may authorize one or more Gazetted Officer of his/her office, preferably the F.A./A.F.A. or Accounts Officer to check and certify the pay fixation statements which however, would not absolve the checking authority himself/herself from the responsibility of correct pay fixation of the employees.

(XII)

One copy of the certified pay fixation statement shall be retained by the Head of Office for record and the other copy attached to the first pay bill in which the salary of the Government servant is drawn in the revised scale.

(XIII)

Pay in the revised scale will be drawn only after obtaining an undertaking from the employee that excess payment, if any, detected in future will be refunded by him. An undertaking to this effect as specified in Fifth Schedule under Rule-17 shall be furnished by the employee.

(XIV)

A certificate in the following form shall also be recorded by the D.D.O. concerned in the pay bill in which pay in the revised scale is drawn for the first time.

"Certified that in respect of the person/persons included in this bill, initial pay fixation has been checked by the undersigned and an undertaking/undertakings to refund excess payment, if any, detected in future has/have obtained from him/them".

(XV)

At the time of post checking, if excess payment is detected and after adjustment from the arrear salary still some amount is left un-adjusted, the same will be adjusted from the recoverable pensionary benefit of the employee concerned. On account of non-adjustment and non-recovery from future dues and recoverable pensionary benefit, the DDO shall be held personally responsible.

(XVI)

In case of employees enrolled under the New Pension Scheme (NPS), their monthly subscription and appropriate equivalent Govt. contribution shall be deducted/drawn from salary of December, 2008 and onwards in the revised scale and credited/remitted to the appropriate Account/Authority as prescribed.

(XVII)

In authorizing the payment of arrear salary in the revised scale of pay, the income tax as due for the respective financial year shall also be deducted and be credited to Government in accordance with the instructions on the subject.

2. Rule-14 of the Orissa Revised scales of Pay Rules, 2008 contains guidelines for fixation of pay in the Assured Career Progression (ACP) of different categories of employees. Accordingly, the respective appointing authorities shall constitute the Screening Committee for the employees as the case may be.

3. These instructions be brought to the notice of all sub-ordinate offices.

Related AI tags, queries and research notes

Translation